

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	Economic Stability (ES)
	Part No./Name	B-ELIGIBILITY FACTORS
	Section No./Name	B-1200-FITAP SUPPORT ENFORCEMENT SERVICES
	Document No./Name	B-1270-FITAP Grant Review
	Effective Date	March 1, 2017

I. STATEMENT OF POLICY

For a FITAP case to become subject to the grant review process, both the court-ordered amount of child support and the amount collected must be equal to or greater than the FITAP grant amount.

*** Documentation of child support received is captured on INFOPAC report, LAIN23P. **** LAIN23P is a two-part report which is generated monthly. The first part of the report, LAIN23P4, identifies cases in which it appears that both child support collected in the prior month by Child Support Enforcement (CSE) and the amount of the court order are equal to or exceed the grant amount. The second part of the report, LAIN23P7, identifies payees with multiple grants for whom child support was collected and who may meet grant review criteria. These listings are available on INFOPAC for use by the *** worker **** for the grant review process.

The listings contain the following information:

- LAMI case ID number(s)
- LAMI Case Name(s)
- LASES Case ID number(s)
- Grant Amount - This is the amount of the FITAP grant for the month of collection and is the amount which was reimbursed. For two-parent households, this field will be blank. Refer to [B-620-FITAP](#), section B-620-8 to determine child support to be budgeted.
- Collect Amount - All LASES cases associated with the FITAP case will be listed with the amount collected shown for each case. The amounts are totaled and show the monthly collection amount.
- Court Order - The court-ordered amount for each associated LASES case is listed. These amounts are totaled and show the monthly court-ordered amounts.
- Disposition

B-1271-FITAP - * PO ** FAILURE TO RECEIVE BUDGETED CHILD SUPPORT DURING GRANT REVIEW PERIOD

*** Continued eligibility must be determined if the client reports during the month following the first month cash benefits are stopped that no child support was received or that the amount of child support received was less than the amount budgeted. ****

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II. PROCEDURES

When the grant review listing is received, take the following action:

- Budget any child support payment collected on all FITAP two-parent households. CSE will not retain the money collected and will send the amount collected to the household. Refer to [B-620-FITAP](#), section B-620-8 for budgeting procedures.
- Compare the current month's FITAP grant amount to the grant amount shown on the grant review listing. If there has been a grant increase, and if the increased grant amount is more than both the collect amount and court order amount, clear the listing by indicating it is not a valid grant review. If there has been no grant change or if the increased grant amount remains less than or equal to both the collect amount and court order amount, follow steps 1 through 5 below.
- Review the LASES case(s) listed *** by completing a 'Cross Program Case Search' **** to determine *** whether **** the child(ren) for whom the support was paid is in the assistance and/or income unit of the LAMI case indicated. If the child(ren) is not active in the LAMI case, clear the listing by indicating it is not a valid grant review. If the child(ren) is active in the LAMI case, take the following action as soon as possible but no later than 10 days from the run date of the LAIN23P:
 1. Complete a manual budget to determine whether both the court-ordered amount and the child support collected equal or exceed the FITAP grant amount for the current month.
 2. If the court-ordered amount and the child support collected do not equal or exceed the grant amount, post the listing and take no further action.
 3. If both the court ordered amount and the child support collected equal or exceed the grant amount, enter a disposition reason code 06, a closure code 15, and a notice/adverse action suppression code of 2. DO NOT enter unearned income type IV-D. Send a manual notice of closure using form [OFS 18](#).
 4. If the member is receiving SNAP benefits, the child support should be entered with unearned income type CSA prior to dispositioning the FITAP case. After the FITAP case is dispositioned, disposition the SNAP case with disposition reason code 02. Notice of Adverse Action will be sent for the SNAP case.
 5. Indicate action on the LAIN23P no later than the last day of the month the report was produced and sign the sheet. *** Redact or mask data for other clients if present. The signed/documented report must be scanned into OnBase.**

Note: A 'Cross Program Case Search' is completed by following these steps:

- once in CAFÉ, click on the 'Cases' tab,
- click on the case number listed in 'Cases' tab and select the appropriate case to view,

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- select the appropriate DCFS program, SNAP, FITAP, or KCSP for review,
- click on the green arrow next to a member's name which allows the worker to complete a cross referencing of programs. This will enable the cross program pop up box,
- from the 'Cross Program Case Search' box drop-down menu, choose the program Child Support, and
- if the data available is not clear or seems questionable, email the details to the Regional FITAP Consultant for clearance.

B-1271-FITAP - PR FAILURE TO RECEIVE BUDGETED CHILD SUPPORT DURING GRANT REVIEW PERIOD **

If the client reports during the first month cash benefits are stopped that the amount of support budgeted was not received, advise the client to contact the office at the beginning of the following month if the money is not received or is less than the amount budgeted.

Take the following action if the client reports in the * month ** following *** the first month cash benefits were stopped * that the amount of child support received ** was less than the amount budgeted:

1. Verify on LASES the amount of any child support payments received during the month of discontinuance * by completing a 'Cross Program Case Search' through CAFE. **
2. Determine eligibility for that first month using the verified amount of support payments received.
3. If eligible, re-certify the case effective the first day of the month the case was previously closed. Completion of the application form is not required and proration of benefits does not apply.

This procedure is applicable only for the first month cash benefits are stopped. After this the client must reapply if child support payments are not received or are less than the amount budgeted.

III. FORMS AND INSTRUCTIONS

* [OFS 018 Form/Instructions Notice of Decision](#)

IV. REFERENCES

[Title IV of the Social Security Act, Sections 408 and 457](#)

[LAC 67:III.1239 **](#)